mean time: (‡) so if feoffee upon condition, grants a rent-charge out of the land, and afterwards the grantee brings a writ of annuity (T), now *ab initio* it was an annuity between the grantor and grantee; but as to the feoffor, who by the grant was entitled to enter for the condition broken, it shall not **[29 b]** have any relation to his prejudice. So it is adjudged in (*a*) 30 E. 3. 17. in a *dum fuit infra ætatem* against Richard Spellow, the tenant said, that his father was seised, and died seised, and prayed his age; the demandant counter-pleaded the age, because his father and he himself were jointly enfeoffed, and to the heirs of the father: and it was adjudged, that he should not have his age; for although this refusal should have relation as to himself, yet, as to the demandant, who is a stranger, it should not have relation to delay his action, when in truth he had the freehold by purchase (U). Further, it was said, that no relation shall make that tortious which was lawful; for, as it hath been said, relations are fictions in law, which will never do wrong: upon all which matter it was concluded, that this refusal should have relation only as to the manor of Hynton, and not as to the manor of Thoby, and to the intent only that the wife should not be prejudiced for any thing concerning the manor of Hynton; and this relation doth not prejudice the heir, who is a third person, upon whom, by the death of the devisor, part of the manor of Thoby did descend; and it will not devest that which the law by descent had lawfully vested by the death of the devisor in the manor of Thoby: but as the will took effect at the time of his death, it shall remain; for (*b*) *omne testamentum morte consummatum est;* and the refusal of the wife, as to the manor of Hynton, cannot make the devise as to the third part of the manor of Thoby good, which was void when the devise took effect, *scil.* at the time of the death of the devisor.

Note, (†) reader, not only in this case of relation, which is a fiction of law, but also in all other fictions of law, they are to certain respects and purposes, and extend only to certain persons. As the law supposes, that the vouchee is tenant of the land, whereas in truth he is not, but that is as to the demandant himself, and to enable him to do all things as to the demandant, and which the demandant may do to him; and therefore a fine levied by the vouchee to the demandant, or a fine or release from the demandant to the (*c*) vouchee, is good; but a fine levied by the vouchee to a stranger, or a release made to him by a stranger, is void, and therewith agrees 7 E. 4. 13. b. (W). So if the tenant, hanging a *precipe* against him, makes a feoffment, as to the demandant, the lew doth suppose him tenant of the land, and he shall plead all pleas which the tenant of the land may plead; but *in rei veritate* the feoffee is tenant of the land as to all strangers. So if (*d*) donee in tail makes a feoffment in fee, *in rei veritate* the donee hath *neque jus in re, neque jus ad rem*, and yet the donor may extinguish or diminish his rent by release or confirmation made to him (X); as it is agreed 14 H. 4. 38. a. b. 1 H. 5. Grants 43. **[30 a]** in all which

(‡) [Vin. Abr. Relation C. pl. 6.]

(T) As to the writ of annuity, see *ante* i. p. 55 a. n. (M). (ED.)

(*a*) Fitz. Age 58. 1 Roll. 143, 144, 145. 9 Co. 85 a.

(U) The privilege of parol demurrer is only allowed where the heir is in by descent, and not where he claims by purchase, *post* 9 Co. 85 a. 1 Roll. Abr. 143. And where the heir has an estate in possession sufficient to answer the demandant's action, though he have the residue by descent, he shall not have his age, 1 Roll. Abr. 143. As to parol demurrer in general, see the books cited *ante* p. 13 a. n. (O). (ED.)

(*b*) *Post* 34 a. 4 Co. 61 b. 6 Co. 76 a. *Post* 32 a.

(†) [Vin. Abr. Fictions A. pl. 1.]

(*c*) Hob. 222. 1 Co. 87 b. 8 Co. 151 b. Lit. sect. 455. 491. 10 Co. 48 b. Co. Lit. 265 b. 9 H. 7. 26 a. 7 E. 4. 13. b. 2 Roll. Rep. 323. [5 Cru. Dig. 86. Vin. Abr. Fictions A. pl. 1. Bac. Abr. Fines C. iii. 198.]

(W) See *ante*, i. p. 87 b.

(*d*) Co. Lit. 269 a. 270 a. Hob. 337. 2 Roll. Rep. 322. 417. 429. Godb. 313. 314. 10 Co. 48 b. 1 Jones 73. [Shep. Touch. 339. 3 Wood, 551. 5 Cru. Dig. 383. 1 Prest. Conv. 284. Vin. Abr. Estate F. a. pl. 13.]

(X) So a release by the lessor to his lessee for life, after a disseisin, enures to extinguish the rent, though it cannot enure by way of enlargement, 1 Inst. sect. 456. 269 a. ii. 493 and n. (R 2.) *ib.* 2 Prest. Conv. 313. (ED.)

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cases, and other the like, (‡) the law will never make any fiction, but for necessity, and in avoidance of a mischief; for if the vouchee should not be tenant as to the demandant, or that the tenant after the feoffment should not be, as to the demandant, tenant of the land, the demandant in the one case and the other could never have the effect of his suit, but would be for ever delayed; and in the latter case, notwithstanding the feoffment, the donee shall remain tenant as to him, and of necessity he shall (*a*) avow for his rent upon him, for he cannot avow upon the discontinuee, for then upon his own shewing, the reversion, to which the rent is incident, would be devested out of him by the feoffment, and by consequence he cannot maintain his avowry for the rent; and therefore for necessity he shall avow upon the donee (Y); and his feoffment (†), which is his own act, and by which wrong is done, shall not avail him to bar the donor of his rent, for a man shall never take benefit of his own wrong, and that is (as to this point) as it seems to me the better opinion of the books. As to the statutes of 32 and 34 H. 8. it was resolved, (‡) that after the statute of 27 H. 8. and before the statute of 32 H. 8. the manor of Thoby was not devisable; and because the said William Barners the devisor had not followed the power and authority which the statute of 32 H. 8. (and the statute of 34 H. 8. which explains it) gave him, it was resolved, that the will was void for part of the manor of Thoby. And that was collected on four parts of the said Acts, the effect of which I have abridged as follows:

The first branch of the Act of 34 H. 8.

"1. That all and every person, having a sole estate in fee-simple of any manors holden in chief, &c. shall have full and free liberty, power, and authority, to give and dispose, by his last will in writing, as much as in him of right, as much of, &c. as shall amount to the full and clear yearly value of two parts in three parts to be divided."

The second branch.

"2. The same division to be set out by the devisor, owner, or in default thereof, by commission to be granted out of the Court of Wards."

The third branch.

"3. And that the King shall take for his full third part, such manors, &c. of estate of inheritance, as well in fee tail as in fee simple, as shall descend, or come by descent, &c. immediately after the death of such devisor."

The fourth branch.

"4. And in case the manors, &c. which shall immediately after his death descend, &c. shall not extend to the value of a full third part, the King may take, &c. to make up, &c."

And on these four parts it was concluded for divers notable **[30 b]** reasons, that the devisor had not power to devise the whole manor of Thoby by force of the said statutes; and to this purpose four reasons were collected on the said first branch.

(§) First, on this word "having;" and therefore if it be asked, *quis potest legare?* the makers of the Act answer, every person having manors, &c. so that it is not said every person generally, but every person having, &c. And this word "having" imports

(‡) [3 Bl. Com. 43. Vin. Abr. Fictions A. pl. 5.]

(*a*) Hob. 337. Co. Lit. 269 a. Cro. Car. 428. 430. Plowd. 561 a. 48 E. 8 b. [Vin. Abr. Estate F. a. pl. 14.]

(Y) But when tenant in tail suffers a common recovery, or levies a fine, the avowry together with the right of intail ceases, Hob. 337. (ED.)

(†) [Co. Lit. 76 a. b. 78 a.]

(‡) [Vin. Abr. Devise. I. 4. pl. 4.]

(§) Rep. Q. A. 106. 122, 123, &c. [1 Saund. 277 a. n. 1 Salk. 237, 238. 3 Burr. 1490. 3 T. R. 90, 91. Gilb. Debt. 1081. Pow. Dev. 105, &c. Shep. Touch. 438. Prest. Watk. Conv. 212. Vin. Abr. Devise I. 3. pl. 10. I. 4. pl. 4. Com. Dig. Devise M. Bac. Abr. Legacies and Devises A. iv. 246.]

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